

OFFICIAL

**TOWNSHIP OF MOON
RESOLUTION R-26-2013**

A RESOLUTION OF THE TOWNSHIP OF MOON, ALLEGHENY COUNTY, PENNSYLVANIA, TO AUTHORIZE THE EXECUTION OF A TRAIL OPERATION AND MAINTENANCE AGREEMENT FOR THE OHIO RIVER TRAIL SOUTH SHORE EXTENSION.

WHEREAS, the Ohio River Trail Council desires to extend the existing Ohio River Trail to add the Ohio River South Shore Trail through Monaca Borough, Center Township, the City of Aliquippa, Hopewell Township, South Heights Borough, Crescent Township, Moon Township, and Coraopolis Borough (hereinafter referred to as the "Ohio River Trail South Shore Extension"); and

WHEREAS, a portion of the Ohio River Trail South Shore Extension will traverse a portion of the Township of Moon (the "Township"); and

WHEREAS, the Township Board of Supervisors desire to participate in the Ohio River South Shore Extension, subject to the Township's execution of a trail operation and maintenance agreement.

NOW, THEREFORE, the Board of Supervisors of the Township of Moon hereby resolves as follows, incorporating the above recitals by reference:

Section 1. The Township Board of Supervisors hereby approves the trail operation and maintenance agreement for the Ohio River South Shore Extension, attached hereto and incorporated herein as Exhibit "1". The Township Board of Supervisors also hereby authorizes the appropriate Township officials to execute said agreement and to take any and all actions necessary to effectuate the same.

Section 2. All prior resolutions are hereby repealed in whole or in part to the extent inconsistent herewith.

Section 3. This Resolution shall take effect immediately.

RESOLVED and **ADOPTED** this 4th day of December, 2013 by the Board of Supervisors of the Township of Moon in lawful session duly assembled.

ATTEST:

TOWNSHIP OF MOON


Jeanne M. Creese
Township Manager/Secretary

By:


Marvin D. Eicher
Chairman, Board of Supervisors

(SEAL)

Ohio River Trail Council Intergovernmental Agreement

This agreement made this first _____ day of _____, 2013 by
and among:

Ohioville Borough, situated in Beaver County
AND
Glasgow Borough, situated in Beaver County
AND
Midland Borough, situated in Beaver County
AND
Industry Borough, situated in Beaver County
AND
Vanport Township, situated in Beaver County
AND
Beaver Borough, situated in Beaver County
AND
Bridgewater Borough, situated in Beaver County
AND
Fallston Borough, situated in Beaver County
AND
New Brighton Borough, situated in Beaver County
AND
City of Beaver Falls, situated in Beaver County
AND
Rochester Township, situated in Beaver County
AND
Rochester Borough, situated in Beaver County
AND

Patterson Township, situated in Beaver County
AND
Monaca Borough, situated in Beaver County
AND
Center Township, situated in Beaver County
AND
City of Aliquippa, situated in Beaver County
AND
Hopewell Township, situated in Beaver County
AND
South Heights Borough, situated in Beaver County
AND
Crescent Township, situated in Allegheny County
AND
Moon Township, situated in Allegheny County
AND
Coraopolis Borough, situated in Allegheny County
AND
Sewickley Borough, situated in Allegheny County
AND
Allegheny County
AND
Beaver County

Hereafter collectively referred to as the "Partnership" or sometimes individually as "Participant".

Witnesseth

WHEREAS, the Partnership, desires to improve and maintain said real property of the Ohio River Trail for the purpose of providing recreational trails for biking, hiking, equestrian and other non-motorized activities; and

WHEREAS, said real property will consist of recreational trails throughout the geographic boundaries of the Participants which at the date of this agreement has yet to be constructed; and

WHEREAS, it is believed by the Participants that the citizens within their respective political boundaries will be benefited by the Ohio River Trail jointly maintained by them, which program shall comply with all applicable laws; and

WHEREAS, it is the desire of the parties to arrange for proper operation and maintenance of the Ohio River Trail, and



WHEREAS, the purpose of the Agreement is to provide a framework and a mechanism to adequately maintain the trail within the political boundaries of the Participants through joint efforts rather than by separate efforts of each Participant; and

WHEREAS, to prevent duplication of effort and to maximize cost effectiveness, the Participants mutually desire to mobilize community resources to effectively and economically maintain the Ohio River Trail; and

WHEREAS, the Participants intend to foster partnerships with other public and private organizations to collaborate with the Partnership for the good of all of the communities participating and enable other municipalities to become members of the partnership in the future, and

WHEREAS, all municipalities are legally authorized to enter into such an agreement for the joint administration of recreational facilities including trails for their respective citizens.

NOW THEREFORE, in consideration of the mutual promises contained herein, the Participants agree as follows:

1. Incorporation of Recitals

The above recitals are hereby incorporated herein as if fully set forth.

2. Responsibilities

(A) The Participants agree to become members of a Council known as the, Ohio River Trail Council (ORTC) which will manage and administer the operation and management of the Ohio River Trail pursuant to this agreement, and all amendments hereto.

- (1) **Ownership** – Each municipality retains ownership of its portion of the Ohio River Trail within its limits.
- (2) **Grants** – The ORTC in partnership with all or some of the participating municipalities, will pursue grant funding for the cyclic costs, such as resurfacing of the trail so that Participants will not be responsible for the capital re-surfacing and equipment replacement expenses.
- (3) **Coordination** – The ORTC shall be responsible for coordinating all trail functions including special events with the Participants.
- (4) **Communication** – The ORTC shall be responsible for taking the lead on communication to insure that all parties are fully informed and involved with all aspects of the Ohio River Trail. This shall include an annual meeting of the Partnership to set goals for the next fiscal year and to resolve any issues related to trail operations.
- (5) **Planning** – The ORTC shall be responsible for all planning related to the operation and management of the trail. The ORTC shall involve the Participants in the planning process.
- (6) **Directing** – The ORTC shall be responsible for directing the operations of the trail through coordination with the Participants. This includes:
 - (a) Development and establishment of planned maintenance management system for the Ohio River Trail.
 - (b) Scheduling and implementation of seasonal trail cleanup programs.
 - (c) Inspecting the trail at regular intervals and coordinating any maintenance needs with the respective Participant.
 - (d) Contracting for high tree pruning and herbicide spraying.
 - (e) Replacement of equipment.
 - (f) Contracting for any repair that is “capital” in size and scope. Capital meaning over \$10,000.00.
 - (g) Serving as the single point of contact for the trail and responding to all citizen concerns and requests for information.

- (h) Publicizing and marketing the trail.
 - (i) Coordinating the development of volunteer training.
 - (j) Developing and implementing a trail volunteer program.
 - (k) Responding to requests for assistance from the Participants regarding trail operations.
 - (l) Fundraising for the trail.
- (7) **Evaluating** – The ORTC shall be responsible for annually evaluating trail operations in collaboration with the Participants and making recommendations on operational improvements.
 - (a) Participants.
- (B) **Ordinance or Resolution** – Each Participant must adopt, a resolution ratifying their participation in the program, agreement in establishing the ORTC to manage and operate the Ohio River Trail pursuant to this agreement, and authorizing the approval and execution of the Agreement.
- (C) **Official Recognition** – Each Participant will incorporate the Ohio River Trail in its official municipal maps and plans.
- (D) **Communication** – Each participant shall inform the ORTC about the trail with respect to conditions or incidents that require ORTC response. Each participant shall designate an official contact for the Ohio River Trail for communication with the ORTC.
- (E) **Trail Segment** – Each participant shall administer the maintenance of the Ohio River Trail within the segment of the corridor located within the respective municipality according to agreed upon Maintenance Standards, attached hereto. Maintenance responsibilities will begin once the Ohio River Trail has been constructed within the particular Participants geographic jurisdiction. The trail will have a “pack it in/pack it out” regulation for trash.
 - (1) **Trail Surface** – The ORTC will be responsible for soliciting and entering into contracts for trail resurfacing.
 - (2) **Trail Heads** – Each Participant shall be responsible for the maintenance of the trailhead(s) within its jurisdiction according to the Maintenance Standards. (Trailhead is defined as a major point of entry to the trail that provides parking, information boards, and other trail amenities.)
 - (3) **Tree Trimming** – Each Participant shall be responsible for trimming trees along its segment of the corridor twice annually to the height specified in the Maintenance Standards
 - (4) **Trail Mowing** – Each Participant shall be responsible for trail mowing twice monthly April through October.
 - (5) **Security** – Each Participant shall be responsible for the patrolling of the trail on a schedule to be determined by the Participant.

3. The ORTC will establish a Partnership which will establish its own form of organization and appropriate by-laws. Said by-laws shall incorporate any and all provisions set forth in this Agreement with regard to the conduct of business and shall be reviewed and commented upon by the governing bodies of the Participants.

(A) Duties of the Members in the ORTC Partnership

- (1) Each Member shall serve as a liaison with his or her respective local government, keeping them informed of the Ohio River Trail and to obtain the input of local officials. Each participating Participant shall be entitled to one (1) Member in the ORTC Partnership.
 - (2) Identify and report the trail needs of their respective municipality to the ORTC, as well as monitoring the progress of the ORTC in addressing those needs.

4. Finances

- (A) The ORTC shall be responsible for all capital improvements through the pursuit of grants; raising funds for contracting the tasks of high tree maintenance and herbicide spraying; staff for coordination, oversight and management.
- (B) Participants shall be responsible for providing the above identified maintenance tasks in Item 2(b) as their in-kind service for the operation of the Ohio River Trail.
- (C) Insurance – The ORTC in conjunction with the Counties of Beaver and Allegheny shall provide liability insurance for the Ohio River Trail.

5. Effective Date, Term, Termination, Adding Participants

- (A) Effective Date and Term – This agreement shall be effective _____, 201__ and shall be for a term of _____ years ending _____. Participants may not withdraw from this agreement during the initial _____ agreement. The Agreement shall continue in full force and effect and shall automatically be renewed year-to-year thereafter except as otherwise provided in this agreement.
- (B) Withdrawal – After the initial _____ term, a Participant may withdraw from the terms of this agreement by giving written notice to the ORTC one (1) year before the proposed withdrawal date. Withdrawal from this agreement by any Participant shall not terminate the agreement among the remaining parties. Withdrawal from this agreement must be approved by the majority of the voting members of the governing body of the Participant, which desires to withdraw, and voted on in a public meeting held in accordance with the Pennsylvania Sunshine Act.
- (C) Dissolution – In the case of dissolution of the Partnership by mutual consent of all Participants hereto, the equipment, property, materials, supplies and capital assets of the Partnership shall remain in place and become the responsibility of a successor trail manager or the landowner.
- (D) Adding Participant(s) – At any time during the term of this Agreement consideration may be given to invite or at their own choosing allow other municipal entities to join and become part of this Agreement. The new Participant must pass an ordinance, or other action of its governing body of equal status, which includes approval of this Agreement and its amendments and authorizes the additional execution of this Agreement by the new participant. Terms of such addition shall be approved by a majority of Participants at such time.

6. Entire Agreement

This Agreement constitutes the entire contract by the Participants and there are no other understandings, oral or written, relating to the subject matter hereof.

7. Amendment

This Agreement shall not be amended or altered except by writing duly approved by and signed on behalf of all of the Participants.

8. Governing Law

This Agreement shall be governed by the Laws of the Commonwealth of Pennsylvania. This Agreement is adopted pursuant to the Act and each Participant shall take all necessary steps under said statute to copy with the same.

9. Further Action

The Participants agree to take all action necessary to carry forth the provisions of this Agreement.

IN WITNESS WHEREOF, the parties hereto have hereunto set their hands and seals of the day, month and year first above written

Attest:

Ohioville Borough, Beaver County

By:

Attest:

Glasgow Borough, Beaver County

By:

Attest:

City of Aliquippa, Beaver County

By:

Attest:

Industry Borough, Beaver County

By:

Attest:

Vanport Township, Beaver County

By:

Attest:

Beaver Borough, Beaver County

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Bridgewater Borough, Beaver County

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Fallston Borough, Beaver County

By:

City of Beaver Falls, Beaver County

By:

New Brighton Borough, Beaver County

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Rochester Township, Beaver County

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Rochester Borough, Beaver County

By:

Patterson Township, Beaver County

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Monaca Borough, Beaver County

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Center Township, Beaver County

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City of Aliquippa, Beaver County

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Hopewell Township, Beaver County

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South Heights Borough, Beaver County

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Crescent Township, Allegheny County

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Allegheny County

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Beaver County

By:
